



Matrimonial Causes Act 1967

1967 CHAPTER 56

An Act to confer jurisdiction on county courts in certain matrimonial proceedings; and for purposes connected therewith. [21st July 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Lord Chancellor may by order designate any county court as a divorce county court, and any court so designated shall have jurisdiction to hear and determine any undefended matrimonial cause, except that it shall have jurisdiction to try such a cause only if it is also designated in the order as a court of trial. Jurisdiction of county courts in undefended matrimonial causes.

(2) The jurisdiction conferred by this Act on a divorce county court shall be exercisable throughout England and Wales, but rules of court may provide for a matrimonial cause pending in one such court to be heard and determined in another or partly in that and partly in another.

(3) Every matrimonial cause shall be commenced in a divorce county court, but rules of court—

- (a) shall provide for the transfer to the High Court of any matrimonial cause which ceases to be undefended; and
- (b) may provide for the transfer to that court of matrimonial causes which remain undefended.

(4) Rules of court may provide for the transfer or retransfer from the High Court to a divorce county court of any matrimonial cause which is or again becomes undefended.

(5) Rules of court shall define the circumstances in which any matrimonial cause is to be treated for the purposes of this Act as undefended, and may make different provision with respect to matrimonial causes of different descriptions.

(6) The power to make an order under this section shall be exercisable by statutory instrument and includes power to vary or revoke such an order by a subsequent order.

Ancillary
relief and
protection
of children.
1965 c. 72.

2.—(1) Subject to the following provisions of this section, a divorce county court shall have jurisdiction to exercise any power exercisable under Part II or Part III of the Matrimonial Causes Act 1965 in connection with any petition, decree or order pending in or made by such a court and to exercise any power under section 22 or section 24 of that Act.

(2) Any proceedings for the exercise of a power which a divorce county court has jurisdiction to exercise by virtue of this section shall be commenced in such divorce county court as may be prescribed by rules of court; but rules of court shall provide for the transfer to the High Court of any proceedings pending in a county court by virtue of this section in any case where the transfer appears to the county court to be desirable, and may so provide in such other cases as may be specified in the rules.

1966 c. 35.

(3) A divorce county court shall not by virtue of this section have jurisdiction to exercise any power under sections 25 to 27 of the Matrimonial Causes Act 1965, but without prejudice to the exercise by virtue of section 7 of the Family Provision Act 1966 of any power exercisable by a county court under section 26 or 27 of the said Act of 1965.

(4) Nothing in this section shall affect the jurisdiction of a magistrates' court under section 24 of the Matrimonial Causes Act 1965.

Consideration
of agreements
or arrange-
ments.

3. Any provision to be made by rules of court for the purposes of section 5(2) of the Matrimonial Causes Act 1965 with respect to any power exercisable by the court on an application made before the presentation of a petition shall confer jurisdiction to exercise the power on divorce county courts.

County
court
proceedings
in principal
probate
registry.

4.—(1) Sections 1 to 3 of this Act shall not prevent the commencement of any proceedings in the principal probate registry, except where rules of court under section 2(2) of this Act otherwise provide; and the following provisions of this section shall have effect for the purpose of enabling proceedings to be dealt with in that registry as in a divorce county court.

(2) The jurisdiction conferred by this Act on divorce county courts shall be exercised in the principal probate registry—

(a) so far as it is exercisable by judges of such courts, at such sittings and in such places as the Lord Chancellor may direct; and

- (b) so far as it is exercisable by registrars of such courts, by such registrars or by registrars and other officers of the principal probate registry, according as rules of court may provide;

and rules of court may make provision for treating, for any purposes specified in the rules, proceedings pending in that registry with respect to which that jurisdiction is exercisable as pending in a divorce county court and for the application of section 73(4) of the Solicitors Act 1957 (amount of costs allowed on taxation in connection with proceedings in a county court) with respect to any proceedings so treated. 1957 c. 27.

(3) The principal probate registry shall be treated as a divorce county court—

- (a) for the purpose of any provision to be made by rules of court under section 1(2) of this Act; and
- (b) for the purpose of any provision to be made under section 2(2) of this Act prescribing the county court in which any proceedings are to be commenced.

(4) Rules of court shall make provision for securing, with respect to proceedings dealt with under this section, that, as nearly as may be, the same consequences shall follow—

- (a) as regards service of process, as if proceedings commenced in the principal probate registry had been commenced in a divorce county court; and
- (b) as regards enforcement of orders, as if orders made in that registry in the exercise of the jurisdiction conferred by this Act on divorce county courts were orders made by such a court.

(5) The provision to be made by rules of court for the purposes of this Act for the transfer of proceedings between a divorce county court and the High Court shall, in the case of proceedings pending in the principal probate registry and dealt with or to be dealt with under this section, be provision for the proceedings to be treated, or as the case may be no longer to be treated, for any purposes specified in the rules, as pending in a divorce county court; and any provision so made for the transfer of proceedings between divorce county courts shall include provision for the transfer to or from the principal probate registry of proceedings falling to be treated as pending in a divorce county court.

5. The jurisdiction conferred by this Act on divorce county courts, so far as it is exercisable by judges of such courts, shall be exercised by such county court judges as the Lord Chancellor may direct. Assignment of county court judges to matrimonial proceedings.

Appeals on
questions
of fact.
1959 c. 22.

6. Section 109 of the County Courts Act 1959 (appeals on questions of fact) shall have effect as if the proceedings mentioned in subsection (2) of that section included any proceedings with respect to which jurisdiction is conferred by this Act on divorce county courts.

Matrimonial
causes rules.
1965 c. 72.

7.—(1) The authority having power to make rules of court for the purposes of—

1966 c. 35.

(a) the Matrimonial Causes Act 1965, except proceedings in the county court under section 26 or section 27 (where the county court has jurisdiction by virtue of section 7 of the Family Provision Act 1966) and proceedings under section 39 (declarations of legitimacy, &c.);

(b) this Act; or

(c) any enactment passed after this Act which relates to any matter dealt with in the Matrimonial Causes Act 1965 or this Act, other than such proceedings as are specified in paragraph (a) of this subsection;

shall be the Lord Chancellor together with any four or more of the following persons, namely, the President of the Probate, Divorce and Admiralty Division, one puisne judge attached to that division, one registrar of the principal probate registry, two county court judges, one registrar appointed under the County Courts Act 1959, two practising barristers being members of the General Council of the Bar and two practising solicitors of whom one shall be a member of the Council of the Law Society and the other a member of the Law Society and also of a local law society.

The said puisne judge, county court judges, registrars, barristers and solicitors shall be appointed by the Lord Chancellor for such time as he may think fit.

(2) The power to make such rules of court shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

1925 c. 49.

(3) Rules of court made under this section may apply, with or without modification, any rules of court made under the Supreme Court of Judicature (Consolidation) Act 1925, the County Courts Act 1959 or any other enactment and—

(a) may modify or exclude the application of any such rules or of any provision of the said Act of 1959;

(b) may provide for the enforcement in the High Court of orders made in a divorce county court;

and, without prejudice to the generality of the foregoing provisions, may make with respect to proceedings in a divorce county court any provision regarding the Official Solicitor or any solicitor of the Supreme Court which could be made by rules of court with respect to proceedings in the High Court.

8. The fees to be taken in any proceedings to which rules under Fees. section 7 of this Act apply shall be such as the Lord Chancellor with the concurrence of the Treasury may from time to time by order made by statutory instrument prescribe.

9. Rules of court may provide that the sums payable under section 6(5) of the Legal Aid and Advice Act 1949 to a solicitor or counsel acting in an undefended matrimonial cause shall, at his election, be either—

Remuneration of persons giving legal aid. 1949 c. 51.

(a) such fixed amount specified in the rules as may be applicable under the rules; or

(b) an amount ascertained on taxation or assessment of costs as provided by Schedule 3 to that Act;

and may provide for modifying the said Schedule in relation to any proceedings which by virtue of this Act are at any stage treated as pending in a divorce county court.

10.—(1) In this Act—

Interpretation.

“divorce county court” means a county court designated under section 1 of this Act;

“matrimonial cause” has the same meaning as in the Supreme Court of Judicature (Consolidation) Act 1925, except that it includes an application under section 2 of the Matrimonial Causes Act 1965 and a petition for damages only under section 41 of that Act;

“undefended matrimonial cause” has the meaning assigned to it by section 1(5) of this Act.

(2) References in this Act to a transfer to the High Court include references to a transfer to a district registry.

11.—(1) This Act may be cited as the Matrimonial Causes Act 1967.

Short title, commencement and extent.

(2) This Act shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint.

(3) This Act does not extend to Scotland or to Northern Ireland.